

****10.12.2024****

****Sanction for Non-Compliance with Law No. 506/2004 and GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in October 2024, an investigation into the operator SYNOBIS MEDICAL S.R.L. and found:

a) violation of the provisions of Article 13 paragraph (1) letter i) of Law No. 506/2004 regarding the processing of personal data and the protection of privacy in the electronic communications sector, with subsequent amendments and completions.

b) violation of the provisions of Articles 12-14 of Regulation (EU) 2016/679.

For the committed acts, the operator was sanctioned with a fine of 10,000 lei, as well as a warning.

The investigation into the sanctioned operator was initiated following a complaint regarding a possible violation of the provisions of Regulation (EU) 2016/679 and Law No. 506, as amended and supplemented, through the website www.synobis.ro, owned by SYNOBIS MEDICAL S.R.L., which did not provide the possibility of access without accepting the collection of information through cookies technologies and did not ensure the information of the data subjects, in accordance with the legal provisions in the field.

During the investigation, it was found that the operator SYNOBIS MEDICAL S.R.L.:

a) allowed the storage of information and access to the information stored on users' devices by using cookies available on the website www.synobis.ro, without complying with the legal conditions regarding the prior obtaining of explicit consent and without informing users, as provided by Article 4 paragraph (5) of Law No. 506/2004, with subsequent amendments and completions;

b) did not ensure complete information for the data subjects whose personal data it collects and processes through the website www.synobis.ro, according to Articles 12-14 of Regulation (EU) 2016/679.

At the same time, the following corrective measures were ordered:

a) the operator must actively implement the provisions of Article 4 paragraph (5) of Law No. 506/2004, with subsequent amendments and completions, by obtaining explicit consent and informing users before installing cookies on their devices;

b) the operator must ensure complete information for the data subjects on the website www.synobis.ro, in a concise, transparent, intelligible, and easily accessible form, using clear and simple language, on each section of the site where personal data may be collected/processed, in relation to the provisions of Articles 12-14 of the GDPR, with the information primarily being in Romanian.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****